

Tentative Rulings for Department 6, July 17, 2026

1. CL0002789 Masters Team Mortgage v. Pitts
Cross-Complainants Motion to Compel Responses to Form Interrogatories is GRANTED.
Responses, without objections, to be served not later than August 28, 2026. Sanctions in the amount of \$1,000.00 are awarded to the Moving Parties.
2. CL0003278 LVNV Funding v. Mason
Plaintiff's Motion for Judgment on the Pleadings is GRANTED. Court will sign the Proposed Judgement submitted with the motion.
3. CL0003743 CitiBank v. Keros
Defendant's Motion to Compel Arbitration and Stay Court Proceedings is Granted. For control purposes, The Court sets a Case Management Conference re: Status of Arbitration for November 23, 2026 at 9:00 AM in Department 6. Defendant to prepare an Order After Hearing.
4. CU0001217 Russell v. Barry
Motion for Summary Adjudication
Cross-Complainants seek summary adjudication of the first cause of action in their Cross complaint for a prescriptive easement over what they call the "Travelled Way" across Cross-Defendants' property located on Buck Mountain Road in Grass Valley in Nevada County. Cross-Complainants ask the Court to adjudicate the following issue: Whether Cross-Complainants are entitled to adjudication on their prescriptive easement cause of action because there are no triable issues of fact and Cross-Complainants are entitled to adjudication as a matter of law. Because the Court finds that there are triable issues of a material fact, it answers: No.
For the purposes of a motion for summary judgment or summary adjudication by a Defendant, CCP § 437C(p)(2), provides as follows: A Defendant or Cross-Defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established or that there is a complete defense to the cause of action. Once the Defendant or Cross-Defendant has met that burden, the burden shifts to the Plaintiff or Cross-Complainant to show that a triable issue of one or more material facts exist as to the cause of action or defense thereto. The Plaintiff or Cross-Complainant shall not rely upon allegations or denials of its pleadings to show that a triable issue affect exists but, instead, shall set forth the specific facts showing that a tribal issue of material fact exists as to the cause of action or a defense thereto. (CCP § 437c (p)(2).) In order to establish a prescriptive easement, the burden of proof is on the party asserting prescriptive rights. (Connelly v. McDermitt (1994) 162 Cal.App.3d 973, 976.) Summary Adjudication cannot be granted if there are issues of fact in dispute as to an essential element of a claim. (Federal Deposit Inc. Corp. v. Superior Court (1997) 54 Cal.App.4th 337, 344.)
For a prescriptive easement to arise in the presence of an express easement, the claimants use must expand beyond the terms of the original grant, giving rise to actionable claim by the land owner for trespass or wrongful use. (McBride v Smith (2018) Cal.App.5th 1181.)

In order to acquire Summary Adjudication on a claim for a prescriptive easement, the Cross-Complainants must show that (1) there is no factual dispute that their use of the Travelled Way